



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 30, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14848
(FIFTH REVISION)

EXPIRATION DATE: 2027-04-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Corning Incorporated
Corning, NY
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT specification cylinders as part of a Portable Emission Measurement System, that release a controlled amount of certain Division 2.1 and 2.2 materials without removing the cylinder from the vehicle on which it is transported. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that the requirement to mark each package with the special permit number is waived; and § 177.834(h) in that controlled discharge of the material during transportation is authorized.
5. BASIS: This special permit is based on the application of Corning Incorporated dated May 4, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023015110

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A
Compressed gas, n.o.s.	2.2	UN1956	N/A
Compressed gas, flammable n.o.s.	2.1	UN1954	N/A
Nitrogen, refrigerated liquid <i>cryogenic liquid</i>	2.2	UN1977	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are DOT specification cylinders that are part of a Portable Emission Measurement System as described in the Corning Incorporated application for special permit on file with the Approvals and Permits Division. The Portable Emission Measurement System (PEMS) includes a DOT Specification 4L cylinder as well as the entire system authorized under DOT-SP 13107 or DOT-SP 14274.

(1). The DOT-SP 13107 system consists of:

a. PACKAGING: Prescribed packaging is a DOT specification cylinder contained within an exhaust emission monitor device as shown in the application on file with the Office of Hazardous Materials Safety (OHMS). The cylinder is: 1) a DOT Specification 3AL-1800 cylinder having a diameter of approximately 3.25 inches and a maximum length of approximately 12.25 inches that does not have a pressure relief device; or 2) a DOT specification 3AL-2216 cylinder having a diameter of approximately 3.25 inches and a maximum length of approximately 13.25 inches, equipped with a pressure relief device.

b. OPERATIONAL CONTROLS:

(i). Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinders are not fitted with pressure relief devices and provide appropriate guidance in case packagings are exposed to fire.

(ii). Cylinders may not be offered for transportation unless contained within the exhaust emission monitor device described in the application for special permit.

(2). The DOT-SP 14274 system consists of:

a. PACKAGING: Packagings prescribed are DOT Specification 3AA and DOT Specification 3AL cylinders. The cylinders are part of a Portable Emission Measurement System as described in the Horiba Instruments, Inc. application for special permit on file with OHMS. The nominal water capacity of the cylinders may not exceed 65.0 pounds. The nominal diameter of the cylinders may not exceed 8.0 inches.

b. OPERATIONAL CONTROLS:

(i) The cylinders must be transported in a cylinder mounting frame designed to protect the cylinders from impact in accordance with Horiba Instruments, Inc. Drawing SK0510102 dated September 28, 2005, on file with OHMS.

b. TESTING: Each DOT Specification 3AL and 3AA cylinder must be requalified as specified in § 180.209. No requalification is required for DOT Specification 4L cylinders.

c. OPERATIONAL CONTROLS:

(1) The cylinders must be transported in a closed van type test trailer and must be secured during transportation to prevent shifting or movement.

(2) The flow of Division 2.1 and 2.2 hazardous materials is authorized during transportation. All hazardous materials must be consumed within the emission measuring equipment. The flow of hazardous material must automatically shut-off if the gas line is accidentally interrupted or leaks occur downstream of the regulator.

(3) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinders are not fitted with pressure relief devices and provide appropriate guidance in case packagings are exposed to fire.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The requirement of § 172.301(c) to mark the outside of each special permit package with the special permit number is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals .

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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